

HOUSE No. 1703

The Commonwealth of Massachusetts

PRESENTED BY:

Dennis C. Gallagher

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to prison mitigation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>1/7/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>4/17/2025</i>

HOUSE No. 1703

By Representative Gallagher of Bridgewater, a petition (accompanied by bill, House, No. 1703) of Dennis C. Gallagher for legislation to establish a prison mitigation fund for cities and towns hosting Department of Correction facilities. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1468 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to prison mitigation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 29 of the General Laws is hereby amended by inserting after section 71 the
2 following:-

3 Section 72. There shall be established and set upon the books of the commonwealth a
4 separate fund to be known as the Prison Mitigation Fund, which shall be used exclusively for
5 cities and towns hosting department of correction facilities. Amounts credited to the fund shall
6 be administered by the department of correction.

7 There shall be credited to the fund, revenue from appropriations or other monies
8 authorized by the general court and specifically designated to be credited to the fund and

9 investment income earned on the fund's assets, and all other sources. Money remaining in the
10 fund at the end of the fiscal year shall not revert to the General Fund.

11 One hundred per cent of the monies deposited in the fund, but not less than \$2,500,000 in
12 the aggregate, in each fiscal year shall be distributed to each said city and town in accordance
13 with the following formula: the aggregate amount in the fund divided by the average daily
14 prisoner population at all department of correction facilities, multiplied by the average daily
15 prisoner population located within said city or town.